

M/S Ishita Cold Storage And Ice P Ltd v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 17 December 2025 · WRIT - C No. - 26811 of 2025 · **Writ disposed; EE to conclude show-cause within two months**

HEADNOTE

Writ by a cold-storage consumer seeking adjustment of alleged excess arrears was disposed of without deciding the billing merits. After the licensee withdrew an earlier order and issued a show-cause notice, the Court directed the Executive Engineer to conclude that proceeding preferably within two months.

FACTUAL SUMMARY

The petitioner cold-storage company sought reconsideration of alleged excess payment of Rs. 53,37,420.50 towards arrears from October 2016 to February 2025, for adjustment against future bills. A coordinate Bench on 2 January 2023 recorded the licensee's concession to consider a representation; the petitioner said that was not duly done. After this writ was filed, the licensee withdrew an order dated 6 February 2023 and issued a show-cause notice dated 14 August 2025. Counsel asked that the Executive Engineer conclude those proceedings in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection

HOLDING

Where, after the writ was filed, the licensee withdrew the earlier order and issued a show-cause notice on the arrears dispute, the Court disposed of the petition without deciding the billing merits and directed the Executive Engineer to conclude the proceeding on that notice preferably within two months. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD MADE EXCESS PAYMENT OF RS. 53,37,420.50 TOWARDS ARREARS AND WHETHER THAT SUM WAS LIABLE TO BE ADJUSTED AGAINST FUTURE BILLS.

¶ 4